

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Coyle	Team: Team # 8	CCRB Case #: 200512919	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 10/27/2005 3:30 AM	Location of Incident: 851 East 216th Street	18 Mo. SOL 4/27/2007	Precinct: 47
Date/Time CV Reported Thu, 10/27/2005 1:17 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/27/2005 1:17 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rodriguez	14441	926015	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Force: PO Robert Rodriguez used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . POM Robert Rodriguez	Discourtesy: PO Robert Rodriguez spoke rudely to § 87(2)(b)	B . Complainant Uncooperative

Synopsis

On October 27, 2005 at approximately 3:30AM, § 87(2)(b) and § 87(2)(b) were in their tow truck doing repo work in the Bronx. § 87(2)(b) was driving the truck and § 87(2)(b) was in the passenger seat. While driving to their next repo job, § 87(2)(b) was pulled over by a patrol car. PO1 approached the tow truck and told § 87(2)(b) to step out of the vehicle and show him his license and registration. § 87(2)(b) complied and went to PO1's patrol car. PO1 then put § 87(2)(b) in the back of the patrol car and told him he was being arrested because the plates did not match the truck. PO2 then went to the tow truck and used physical force in pulling § 87(2)(b) out of the truck and pushing him to the side of the truck (allegation A). PO2 was identified by § 87(2)(b) as Officer Robert Rodriguez, shield number 14441. § 87(2)(b) stated that he was able to read PO Rodriguez's name and shield number off of his shield during his interaction with him. PO2 handcuffed § 87(2)(b) and § 87(2)(b) told PO2 to be gentle with him because his leg was injured from a motorcycle accident. PO2 responded, "Stop being a little girl. Shut up. Things could be worse (allegation B)." PO2 then pushed § 87(2)(b) into a patrol car and when he shut the door it banged against § 87(2)(b)'s sore knee (allegation A). At the 47th Precinct, § 87(2)(b) and § 87(2)(b) were informed that the license plate on the vehicle was reported stolen. § 87(2)(b) informed the officers that he had filed the complaint about the missing license plate, and § 87(2)(b) and § 87(2)(b) were released without receiving summonses or desk appearance tickets.

§ 87(2)(b) filed his complaint over the phone with the Civilian Complaint Review Board on October 27, 2005. On November 7, 2005, in a telephone conversation, the investigation and mediation processes were explained to § 87(2)(b) and he chose mediation. On February 3, 2006, the case was returned to the undersigned investigator because the subject officer rejected mediation. Between February 8, 2006 and March 7, 2006, five phone calls were placed to § 87(2)(b) and two letters were sent to his home address. On March 2, 2006, § 87(2)(b) picked up § 87(2)(b)'s phone home and stated that she would give § 87(2)(b) the message that if he didn't call the CCRB by March 9, 2006 then his case may be closed without a full investigation. § 87(2)(b) has failed to respond to any of the CCRB's contact attempts. Due to § 87(2)(b) failure to contact the CCRB, it is recommended that this case be closed as *Complainant Uncooperative*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: